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Iraq: Alleged ISIS Families Sent to 'Rehabilitation Camp'

Evictions, Detentions Amount to Collective Punishment



Update: Human Rights Watch received reports on July 17, 2017, that local authorities in Bartala facilitated the transfer of families out of the “rehabilitation camp” to regular camps for displaced people in the area, and closed the camp. This was a positive move, and Iraqi authorities should protect the rights of displaced families to free movement and prohibit all forms of collective punishment.

(Beirut) – [Iraqi](#) Security Forces have forcibly relocated at least 170 families with alleged Islamic State members to a closed “rehabilitation camp” east of Mosul, Human Rights Watch said today. Local authorities are also demanding the eviction of families thought to have ties to the Islamic State (also known as ISIS), many of whom have been the target of threats and attacks.

On June 19, Mosul’s district council issued a [directive](#) that so-called ISIS families should be sent to camps “to receive psychological and ideological rehabilitation, after which they will be reintegrated into society if they prove responsive to the rehabilitation program.” On July 9, authorities in Nineveh opened the first “rehabilitation camp” in Bartalla, 14 kilometers east of Mosul. Forced displacements and arbitrary detentions have been taking [place](#) in Anbar, Babil, Diyala, [Salah al-Din](#), and Nineveh governorates, altogether affecting hundreds of families. Iraqi security and military forces have done little to stop these abuses, and in some instances participated in them.

“Iraqi authorities shouldn’t punish entire families because of their relatives’ actions,” said [Lama Fakih](#), deputy Middle East director at Human Rights Watch. “These abusive acts are war crimes and are sabotaging efforts to promote reconciliation in areas retaken from ISIS.”

On July 11, Human Rights Watch visited Bartalla camp, where 150 families, mostly women and children from areas of west Mosul, were being held. The camp received another 20 families by the next day. Human Rights Watch interviewed 14 families, each with up to 18 members.

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their will because of accusations that they had relatives linked to ISIS. None said they had been accused of any wrongdoing themselves. They did not know when they would be allowed to leave.

The camp had a mobile medical clinic, but only very limited humanitarian services were being provided, with no education, training, or other programs. Medical workers at the camp said that at least 10 women and children had died traveling to or at the camp, most because of dehydration. The camp is managed by local authorities and draws funding and support from the Iraqi Ministry of Displacement and Migration.



Bartalla Camp. © 2017 Belkis Wille/Human Rights Watch

Human Rights Watch witnessed ethnic Shabak fighters from an Iraqi government Popular Mobilization Forces unit manning a checkpoint outside the camp. A Mosul emergency police unit stood guard at the camp entrance. Despite the absence of adult men in many of the families, no female police officers were evident, raising concerns about vulnerability to gender-based violence. Camp officials said that at least 20 unaccompanied children were at the camp, all under 12, who had been settled into tents with larger families.

Nineveh officials told Human Rights Watch that the camp, intended as the first of many, was constructed for 2,800 families, and that officials were planning to bring in ISIS families from other camps and areas. Residents and Nineveh officials said a committee would screen people inside the camp and allow them to leave if the committee found they did not actually have relatives in ISIS. They said some families had been released during the first two days.

The families said they hoped the screening committee would clear them for release. All said that Iraqi Security Forces had forcibly brought them in military trucks from two army mustering points for displaced people fleeing the fighting in west Mosul. Six families said they had fled the fighting in areas in and around the Old City of west Mosul, eight from the Tel Afar area. Only two of the families included adult men. Many said their male relatives were killed during the fighting. Others said that the men fled their homes later and had tried to join them at the camp but were turned away by the police. One said her two sons had been ISIS fighters and were killed, and another said her husband and son had been detained by Iraqi Security Forces as they fled.

One young woman said that after she got divorced at an ISIS-run courthouse in Mosul last year, the judge took her to his house and held her as a sex slave. When fighting neared, he and his family fled but kept her locked in their home. Iraqi Security Forces who retook the area presumed she was an

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Human Rights Watch has previously reported on the forcible [relocation](#) of at least 125 so-called ISIS families from Salah al-Din to a de facto detention camp near Tikrit. Human Rights Watch has also reported on calls for [evictions](#) of so-called ISIS relatives in Anbar and Babil governorates.

Since May, local tribal and governorate authorities in Hammam al-Alil, Qayarah, and Mosul have issued eviction calls against so-called ISIS families, in tandem with grenade and other attacks on families, as well as threatening letters and demands to deny these families humanitarian assistance. As a result, many of these families have been forced to move to nearby camps housing families displaced by the fighting in Mosul.

In June, a [circular](#) was sent to alleged ISIS families in Mosul telling them to leave the city by July 15, 2017, or “you will be shot,” according to social media. In July, an international organization said that some so-called ISIS family homes were set on fire. In Qayyarah, 60 kilometers south of Mosul, a Popular Mobilization Forces fighter and a senior security officer said that a group of families who were ISIS victims, with the backing of local tribal leaders, drew up a list of 67 families whom they demanded should leave the city. A video posted on Facebook on June 17 but later taken down showed residents going door to door, threatening the so-called ISIS relatives that if they did not leave, their lives would be at risk. The security officer said that some people threatening the families had resorted to violence. He said he detained four of them, and that as a result of the threats and violence, at least 25 of the 67 families [left](#) for the nearby Jadah camp.

Aid workers said that in May and June 2017, so-called ISIS relatives from Mosul living in Hammam al-Alil, 30 kilometers south of Mosul, told them that the local tribal elder warned them that they might be killed if they did not leave. The aid workers also said that there had been numerous cases of vigilantes vandalizing homes of people believed to be relatives of ISIS members, leading a number of families to leave town.

A local police chief said that his forces had intervened to stop the attacks and evictions in mid-June. However, a Dutch [journalist](#) said that another local police chief told him that the police would not stop or arrest members of an armed group called the “Hamam al-Alil Revolutionaries” that had publicized on Facebook grenade attacks on homes of so-called ISIS families. The journalist also reported that a local lawyer collected signatures calling for evicting all ISIS families.

International law requires that punishment for crimes only be imposed on people responsible for the crimes, after a fair trial to determine individual guilt. Imposing collective punishments on families, villages, or communities violates the laws of war and amounts to a war crime.

Under the laws of war, forced displacement of civilians is strictly prohibited except when displacement is necessary to protect civilians or for imperative military necessity, and then only for as long as needed. Under the Rome Statute of the International Criminal Court, it is a war crime to

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Local [authorities should reverse](#) any decrees targeting the families of alleged ISIS affiliates in violation of international standards. Iraq's prime minister should issue a decree requiring local authorities to rescind the decrees and to cease the forced displacements. The government should order the security and armed forces not to participate in unlawful displacements and to take appropriate disciplinary action against those who do.



The authorities should immediately facilitate the return of families who want to return to areas not affected by ongoing military operations, allow families to stay in camps that allow for free movement and communications if they choose, or to relocate elsewhere. Where authorities cannot ensure the safety of families because of threat of revenge attacks, they should allow families to freely choose to relocate to camps or other areas where authorities can provide adequate protection.

"The camps for so-called ISIS families have nothing to do with rehabilitation and are instead de facto detention centers for adults and children who have not been accused of any wrongdoing," Fakih said. "These families should be freely permitted to go where they can live safely."

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